STANDARD OPERATING PROCEDURE	G-2100

	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/04/06	DATE REVISED **01/10/23**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		

CHAPTER TITLE	RESOURCES
GENERAL	

SUBJECT	CROSS REFERENCE
COMPLAINT PROCEDURE	G-1400 HARASSMENT G-1500 DRUG-FREE WORKPLACE G-2200 DISCIPLINE G-2300 MEMBERS RIGHTS AND REQUIREMENTS G-6120 USE OF FORCE RESULTING IN DEATH OR SERIOUS BODILY INJURY

I. Purpose:

The purpose of this policy is to establish procedures for investigating complaints involving employees of the Sheriff's Office.

II. Policy:

The Sarpy County Sheriff's Office is committed to providing an effective avenue for addressing complaints against employees. All complaints, including anonymous and third-party complaints, shall be accepted and investigated to the extent that sufficient information is provided. Procedures have been established for receiving and investigating complaints against Sheriff's Office employees to provide fair, objective and expeditious dispositions of complaints. These procedures may subject employees to discipline (see G-2200 Discipline) when warranted, but also protect employees from false allegations of misconduct. These procedures apply to all employees whether on or off duty.

III. Definitions:

A. Complaint: An act of dissatisfaction expressed by a citizen or employee to a supervisor or commanded officer that generally relates to employee misconduct or Sheriff's Office operations.

1. **Formal Complaint:** A complaint that is documented.

2. **Informal Complaint:** A complaint that is not documented.

B. **Findings Report:** A summary completed at the conclusion of a line investigation or internal affairs investigation. The summary shall include significant information acquired during the investigations, department policies involved and recommendation for discipline regarding the incident, if necessary. The Finding Report shall be completed on a Findings Report form.

C. **Internal Affairs Investigation (IA):** The investigation of any and all formal complaints alleging misconduct.

D. **Investigation File:** The Investigation File shall be the electronic and/or physical file containing all of the investigation documents (e.g., formal complaint, findings report, incident reports, etc.).

E. **Line Investigation:** An investigation generated within the Sheriff's Office against an employee who may have violated SOP, but the violation does not merit a formal complaint.

IV. Procedures:

A. Receiving a Formal Complaint from a citizen:

1. Any citizen who telephones or appears at the LEC between 0800 and 1645 hours on a weekday, excluding holidays, and requests to file a formal complaint against an employee shall be referred to the ADC or Professional Standards Commander.

a) When the Sheriff's Office is closed, the citizen shall be directed to the on-duty watch commander.

b) If there is no watch commander available, the citizen shall be referred to an on-duty road patrol supervisor.

2. The complainant shall be provided a Formal Complaint form or directed to where to obtain a formal complaint online.

3. Citizens may also file formal complaints by fax, mail, or e-mail. The complainant shall then be contacted by the Professional Standards Command or his or her designee, to verify that he or she originated the complaint. Citizens may also file a formal complaint via the telephone. In this situation, the supervisor or command officer receiving the call shall complete a Formal Complaint form on behalf of the complainant.

4. The supervisor or command officer shall obtain a report number for the formal complaint on the date the formal complaint is received/taken. This report number shall be in addition to and related to the original report number of the incident, if applicable.

5. The supervisor or command officer shall notify the Professional Standards Commander immediately. If the Professional Standards Commander is unavailable, the supervisor or command officer shall notify the Professional Standards Commander's designee.

6. The formal complaint shall be forwarded to the Professional Standards Commander or his designee in a sealed envelope marked "confidential" or hand delivered. In the case of a serious allegation of crime or gross misconduct, the formal complaint shall be hand delivered to the Professional Standards Commander or his designee.

7. If the complaint is not serious in nature (e.g., rudeness complaints), the Sheriff or Chief Deputy may, at the request of the Professional Standards Commander, authorize a line investigation in lieu of an internal affairs investigation.

8. The Sheriff or Chief Deputy shall be notified of all Formal Complaints filled against employees. This notification shall take place as soon as practicable.

B. Formal Complaint by an Employee:

1. Any employee, regardless of rank or assignment, shall file a formal complaint if he or she has a reasonable belief that another employee has committed any of the following offenses (this list is not all-inclusive):

a) Abuse of authority.
b) Harassment (G-1400).
c) Discrimination.
d) Civil rights violation.
e) Gross misconduct.
f) Gross negligence.
g) Any criminal act (not required for minor traffic violations).

2. The formal complaint shall be documented on a Formal Complaint form, which shall set forth the details of the act/incident. The Formal Complaint form shall be forwarded directly to the Professional Standards Commander or his designee; no one else should be shown the form.

C. Internal Affairs Investigation of Formal Complaints:

1. Professional Standards Commander's Responsibilities: The Professional Standards Commander or his or her designee receiving the complaint shall assign an IA number to the formal complaint. All documents and other related information shall be identified with the IA number and related report number. An electronic IA file shall be generated, and the formal complaint shall be added to that electronic file.

a) The Professional Standards Commander or his or her designee shall conduct an initial review of the complaint and ensure written notice is forwarded to the accused employee and his or her chain of command.

(1) The notice shall inform the employee that a formal complaint has been received and a brief explanation of the accusation. The employee shall also be advised of his or her right to representation (See G-2300 Employee Rights and Requirements).

(2) Notice shall not be sent to the accused employee if it could compromise the investigation.

(3) The employee may also be ordered to submit a written report concerning the incident giving rise to the complaint. The report shall be submitted to the Professional Standards Commander or his designee within five (5) calendar days of the order.

(a) The employee may reference his or her reports and/or videos to assist them in the completion of the requested report. The employee shall not access videos and/or reports that are not their own.

b) Should the Professional Standards Commander or his or her designee determine after the initial review of the complaint that the complaint is without merit or determine administrative closure of the complaint will be requested (see c) below), notification to the accused employee shall not be required.

c) If the Professional Standards Commander or his or her designee believes the complaint is clearly without merit, he or she shall complete the following:

(1) A written summary including the reasoning behind the request to administratively close the complaint.

(2) A Classification and Disciplinary Review form listing the complaint as administratively closed and shall forward the form and all documents to the Professional Standards Division Commander for review.

(3) If the Professional Standards Division Commander concurs that the complaint should be closed, the form and all documents shall be forwarded to the Chief Deputy.

(4) If the Chief Deputy concurs the Professional Standards Commander or his or her designee shall complete the following:

(a) The complainant shall be notified in writing that the complaint will not be investigated further and the reason(s) why (e.g., the complaint involves the difference of opinion regarding a law violation).

(b) The involved employee (if previously notified) and his or her chain of command shall be notified in writing that the complaint was found to be without merit and was closed administratively.

(c) The complaint shall be maintained in the Internal Affairs files.

(5) If the Professional Standards Division Commander or Chief Deputy believes the complaint may have merit, the Professional Standards Commander or his or her designee shall continue the complaint process (see section D, below).

d) If the complaint appears to have merit or requires additional investigation the Professional Standards Commander or his or her designee shall create an investigation (IA) file

including the notifications, the formal complaint and any related reports.

D. Formal Complaint Investigation by The Professional Standards Division:

1. The assigned Professional Standards Investigator shall complete an investigation including, but not limited to: Employee notification, conducting interviews, gathering evidence, and reviewing relevant SOPs (see section F below).

2. After completing the investigation, the assigned Professional Standards Investigator shall complete all relevant reports, and may include a separate report listing potential policies involved in the investigation.

3. The Professional Standards Investigator will then forward the file to the employee's division command officer.

4. The division command officer shall complete a Findings Report form and shall initiate a Classification and Disciplinary Review form (see G below) and add them to the IA file. The division command officer shall have eight (8) calendar days to complete the Findings Report. Extensions may be approved by the Chief Deputy or Sheriff. A line investigation shall be initiated on a division command officer who fails to complete their Findings Report within the eight (8) calendar day Findings Report period, and do not ask for an extension. Failure to meet investigative review deadlines shall not affect the Sheriff's right to administer discipline on the investigated employee(s).

a) If the action under investigation occurred while an employee was detached from a regular duty assignment to a specialty unit assignment, the Commander Officer who oversees that specialty unit shall complete the findings report.

5. Upon completion of the Findings Report the Commander shall forward the IA file and the Classification and Disciplinary Review form to the Professional Standards Division.

6. The Professional Standards Division shall begin the classification and discipline review process (see H below).

7. Internal affairs investigations shall be completed within forty-five (45) calendar days of the receipt of the formal complaint. Extensions may be approved by the Chief Deputy or Sheriff. When an

extension is approved the complainant and employee shall be given a written/electronic status report regarding the investigation.

E. Line Investigation by Supervisor or Command Officer:

1. Only command officers or supervisors have the authority to initiate and conduct a line investigation. Command officers and supervisors shall not look to higher authority to initiate a line investigation.

2. Line Investigations shall be completed by a supervisor or command officer for any of the following:

a) Policy or procedural violations not reaching the level of a formal complaint.

b) Lost or damaged county property. This requirement, however, may be waived (see G-4100 County Property and Equipment).

c) All traffic accidents involving county vehicles operated by Sheriff's Office employees (regardless of if there was damage to the county vehicle) with the exception of those resulting in death or serious bodily injury (see G-2110 Incident Review).

d) Any other incident when an investigation is requested by a command officer.

e) All other incidents where policy dictates a Line Investigation is to be completed.

3. Command officers shall have the authority to change a line investigation into a formal complaint if deemed necessary.

4. The command officer or supervisor initiating a line investigation shall complete a Line Investigation Notification form, including a brief description of the alleged act/incident and shall forward the form to the following personnel:

a) The accused employee (the form shall not be sent to the accused employee if it could compromise the investigation).

b) The division commander of the accused employee.

c) The division commander of the employee conducting the investigation.

d) The Professional Standards Division.

5. The command officer or supervisor conducting the line investigation shall adhere to the following procedures:

a) The command officer or supervisor shall obtain a separate report number for a line investigation on the date he or she becomes aware of the incident or violation. This line investigation report number shall be in addition to and related to the original report number for the incident, if applicable.

b) The employee may be ordered to submit a written report concerning the incident. The report shall be submitted to the Account Clerk-Supervisor, Sheriff's Administration within five (5) calendar days of the order.

c) The command officer or supervisor shall create an electronic Line Investigation (LI) file on the day the investigation is initiated.

d) The command officer or supervisor shall complete an investigation including, but not limited to conducting interviews, gathering evidence, reviewing reports, and reviewing relevant SOPs (see section F below). All documents/evidence shall be added to the LI file.

e) The command officer or supervisor shall complete a Findings Report form upon completion of his or her investigation. The Findings Report form and all other relevant reports or evidence shall be placed in the investigation file.

f) The command officer or supervisor shall initiate a Classification and Disciplinary Review form and include the form in the file (see G below).

g) Upon completion of the investigation and Findings Report, the command officer or supervisor shall forward the LI file to the Professional Standards Division.

h) The Professional Standards Division shall begin the classification and discipline review process (see H below).

i) Line investigations shall be completed within 30 calendar days from the date the investigating Command Officer or supervisor becomes aware of the violation. Extensions may be approved by the Chief Deputy or Sheriff. When an extension is approved, the employee shall be given a written/electronic status report regarding the investigation. The extension request and response shall be added to the electronic investigative file.

F. Investigation Procedures: see also G-2300 Member Rights and Requirements.

1. Questioning:

a) Questioning shall be specifically, directly and narrowly related to the employee's duties or those of another employee.

b) The accused employee shall be interviewed during regular business hours, if possible. Any employee interviewed off duty shall be entitled to overtime pay.

2. Search of Equipment: The supervisor, command officer, or investigator assigned to investigate a complaint against an employee may perform a warrantless search of county equipment (e.g., locker, desk, cruiser, etc.) assigned to the accused employee. Searches must be either routine, for security reasons, or prompted by reasonable suspicion that an employee has engaged in misconduct (there must be a nexus between the misconduct and the search).

3. Special Investigation Procedures:

a) An employee may be ordered to submit to the following procedure(s) during an investigation:

(1) Psychological evaluation.
(2) Chemical testing of breath or urine (see G-1500 Drug-Free Workplace).
(3) Any medical or laboratory examination.
(4) Photographs.
(5) Physical line-up.
(6) Polygraph Examination: A complainant may also be requested to undergo a polygraph examination in order to substantiate an allegation against an employee.

(7) Any other procedure allowed by law.

b) The special procedures must be specifically, directly and narrowly related to the employee's duties. There must also be articulable facts or circumstances that would lead a reasonable person to believe these procedures are necessary. Refusal to submit to any of these procedures may result in disciplinary action, up to and including termination.

c) The accused employee may submit a written request to undergo any of the aforementioned procedures if he or she believes the procedure would be beneficial to his or her defense.

d) The results of the procedures are limited to administrative uses except as provided by law.

G. **Classification of Investigation**: Upon the completion of an investigation, it shall be classified. The recommended classification shall be documented in the Findings Report and, on the Classification, and Disciplinary Review form.

1. Classifications include:

a) Unfounded: Allegation is false, frivolous, or lacks a sound basis.

b) Exonerated: Incident occurred but was lawful and proper.

c) Not Sustained: Allegation is not supported by sufficient evidence.

d) Sustained: Allegation is supported by sufficient evidence.

e) Finding of Other Violation: A violation did occur, but it is not directly related to the initial complaint.

f) Policy Failure: The incident occurred, but the investigation revealed faulty policies, procedures, and/or training.

g) Administrative Closure: The investigation is closed by the Professional Standards Commander, Administrative Commander, Chief Deputy, or Sheriff (e.g., employee resigns during the investigation). The administrative closure would have no effect on any criminal investigation.

2. Regardless of the classification, all investigations concerning SOP violations shall be reviewed by command officers and/or supervisors to determine the need for change in policy or procedure. Command officers and supervisors shall be responsible for counseling and training of all subordinate employees to prevent similar occurrences.

H. Classification and Discipline Review Process at The Completion of The Investigation:

1. The Professional Standards Division shall route the investigation file to the following individuals for review:

a) Division Command Officer
b) Division Commander
c) Chief Deputy
d) Sheriff, if applicable.

2. Each reviewer shall update the Classification and Disciplinary form, add their signature to the investigation file and return the file to the Professional Standards Division.

3. Each reviewer may concur or modify the classification and recommendation for disciplinary action. Any modifications require the addition of a memorandum to the electronic investigation file explaining the reason for the modification.

4. Upon receiving the investigation file, each reviewer shall have eight (8) calendar days to complete his or her review and return the file to the Professional Standards Division. Extensions may be approved by the Chief Deputy or Sheriff. When an extension is approved, the employee shall be given a status report regarding the investigation.

a) When an investigation is routed back to the initiating command officer or supervisor for further investigation, that command officer or supervisor shall have an additional eight (8) calendar days to complete the investigation and forward back to the Professional Standards Division. Extensions may be approved by the Chief Deputy or Sheriff.

b) A line investigation shall be initiated on reviewers who fail to complete their review within the eight (8) calendar day review period, and do not ask for an extension.

c) The request for an extension and the response to the extension request shall be added to the electronic investigation file.

d) Failure to meet investigative review deadlines shall not affect the Sheriff's right to administer discipline on the investigated employee(s).

5. Final disciplinary authority and responsibility shall rest with the Sheriff. If the Sheriff is unavailable, the Chief Deputy shall render the final decision (see G-2200 Discipline). The Sheriff or Chief Deputy shall return the file to the Professional Standards Division.

6. The Professional Standards Commander shall ensure that the approved discipline is implemented and is properly documented.

7. The Professional Standards Commander shall notify the employee and his or her chain of command regarding the completion of the investigation, classification and the final discipline.

8. The Professional Standards Commander shall notify the complainant, via letter, regarding the completion of the investigation. The complainant shall not receive notification if a criminal or civil case may be compromised by disclosure of this information. No information regarding disciplinary action shall be released.

I. **Routing of Documents:** Any report, memorandum, tape recording, etc. which requires transcription/formatting involving a formal complaint shall be forwarded to the Professional Standards Commander or his designee in a sealed envelope or via email. The Professional Standards Command or his or her designee shall provide these items to the Account Clerk, Supervisor-Sheriff's Administration who shall be responsible for transcribing/formatting these items. **NO** report, memorandum, or tape recording concerning an internal affair investigation or line investigation shall be sent to staff-support-transcription for typing. The Account Clerk, Supervisor-Sheriff's Administration who types the report or memorandum shall forward all documents to the Professional Standards Commander or his or her designee upon completion.

J. **Time Constraints:** All formal complaints shall be accepted and submitted to the Professional Standards Division. Formal complaints submitted more than thirty (30) calendar days after the alleged incident occurred, shall not be investigated except under the following circumstances:

1. When the complaint involves a criminal violation, the criminal statute of limitations shall prevail. Such limitations shall not prevent the

administration from taking disciplinary action deemed necessary to preserve the integrity of the Sheriff's Office.

2. When the complainant is able to show good cause for not making the complaint within the specified time limit.

3. When the good of the Sheriff's Office, the public, and the employees is at stake, the Sheriff may allow an internal investigation to be conducted if the necessity for an investigation outweighs the time constraint guideline.

K. Informal Complaints:

1. Generally, occurs when a citizen merely wants to inform the Sheriff's Office about being dissatisfied with an employee, but the complainant is not requesting any formal action be taken. These types of complaints may be from any source (e.g., telephone, email, fax, etc.).

2. Informal complaints shall be referred to a command officer or supervisor in the accused employee's division. The complainant shall be interviewed to determine the validity of the complaint.

3. The supervisor of the accused employee shall be notified about the informal complaint.

4. The command officer or supervisor may simply handle the complaint by informally speaking to the accused employee about the complaint. If there is not a recommendation for disciplinary action, no report(s) is necessary.

5. If it appears the complaint is valid and discipline may be warranted, the command officer or supervisor shall either:

a) Initiate a line investigation.

b) File a formal complaint on behalf of the citizen (see section IV, A, 4 above).

L. Emergency Relief from Duty: Any command officer or supervisor has the authority to impose Emergency Relief from Duty for an employee when it appears such action is in the best interest of the employee, the Sheriff's Office or the public. The command officer or supervisor shall notify his or her chain of command, as well as the employee's entire chain of command if assigned to a different division. The Assistant Administration Commander shall also be notified. The employee shall

remain on Emergency Relief until the Sheriff or Chief Deputy makes a determination regarding the employee's work status.

M. Administrative Leave: Only the Sheriff or Chief Deputy has the authority to place an employee on or remove an employee from Administrative Leave. Any employee placed on Administrative Leave shall be temporarily transferred to the Administrative Division.

N. Criminal Investigation of an Employee:

1. If an employee allegedly commits a criminal act, the Sheriff or Chief Deputy may either:

a) Assign the case to the Sheriff's Office Investigations Division.

b) Request the investigation be completed by an outside agency.

2. If there is probable cause to arrest an employee, the investigating deputy shall first consult with the following personnel, if time permits: The Sheriff and Chief Deputy. When an arrest is made the ADC, PSU Commander, Assistant Administrative Commander and Division Commander of the accused employee shall be notified.

3. The Sheriff or Chief Deputy shall then determine the appropriate course of action from the following:

a) The accused employee should be arrested immediately.
b) Legal action should be delayed pending further investigation.
c) Refer the case to the County Attorney's Office.

4. A criminal investigation of an employee shall be conducted independently of an internal investigation. Personnel from the Sheriff's Office or the assigned agency conducting a criminal investigation, may not use information obtained from the internal investigation. Personnel conducting an internal investigation may use information from the criminal investigation.

O. Other Complaints:

1. Difference of Opinion Regarding a Law Violation: Complaints received from citizens related to differences of opinion regarding an arrest or the issuance of a citation (e.g., a citizen does not believe he or she was speeding) shall be addressed by the judicial system.

Complaints of this type shall not be investigated unless there is an allegation the deputy violated Sheriff's Office policy or procedure.

2. Anonymous Complaints: Shall be accepted and reviewed for validity.

P. Files:

1. All formal complaints and internal affairs investigations, once completely resolved, regardless of disposition, shall be maintained in the electronic Internal Affairs File.

2. When discipline is administered a hard copy of the finding report, related memorandums, classification and disciplinary review forms, and final discipline letter shall be added to the employee's personnel file.

3. After an investigation of an employee is completely resolved, no one shall review or reproduce any document related to the investigation unless the Sheriff, Chief Deputy or the Professional Standards Commander grants permission.

Q. Informational Material Regarding Complaint Procedures:
Informational material concerning the Sheriff's Office complaint procedure and Formal Complaint forms shall be available in the Sheriff's Office lobby, the Sarpy County Court House and on the Sheriff's Office website. The informational material and Formal Complaint forms shall be available in English and Spanish.